

evidence since the complaint was filed and defendants' answered, that the amendments in the Proposed FAC open an "entirely new field of inquiry," or if they do require new discovery, that Defendants will not have adequate time to propound discovery to address them. (Opp. pp. 3-4.)

Defendants argue in their opposition, without evidentiary support in the Park Declaration, that the fact witnesses have all been deposed, but Defendants do not argue that they will need to conduct additional depositions of any of those witnesses to address the new allegations in the FAC. Merely having to defend the new claim is not the type of prejudice that warrants denial of leave to amend under California's liberal policy of allowing amendments. (*Compare to Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488 [affirming denial of leave to amend to add claim after the date the case was originally set to go trial, and which would have required new witnesses and discovery].)

9. 9:00 AM CASE NUMBER: C25-00423
CASE NAME: VAUGHN BERNARD VS. GONSALVES & SANTUCCI, INC.
***HEARING ON MOTION IN RE: LEAVE TO FILE 1ST AMENDED COMPLAINT**
FILED BY: GONSALVES & SANTUCCI, INC.
TENTATIVE RULING:

The unopposed motion of Defendant and Cross-complainant Gonsalves & Santucci, Inc. dba the CONCO Companies (CONCO) for leave to file a First Amended Cross-Complaint is granted. CONCO shall serve notice of entry of this order on all parties and must separately file its First Amended Cross-Complaint within 15 days of today's order.

10. 9:00 AM CASE NUMBER: C25-01427
CASE NAME: AUGUST BLASS VS. CAL PRIVATE BANK,
HEARING ON ORDER TO SHOW CAUSE IN RE: WHY SANCTIONS OF \$2,000 SHOULD NOT BE
IMPOSED ON PLAINTIFF'S COUNSEL: JASON W. ESTAVILLO AND ELIZABETH HURWITZ
FILED BY:
TENTATIVE RULING:

Before the Court is its own Order to Show Cause issued to attorneys of record James W. Estavillo (188093) and Elizabeth L. Hurwitz (278846) on May 21, 2026.

The order to show cause stated:

The court orders attorney Jason W Estavillo (188093) and Elizabeth L Hurwitz (278846) to appear on Friday, July 10, 2026 at 9:00 a.m. in Dept. 32 of the Contra Costa Superior Court, and show cause, if cause there be, why \$2000 in monetary sanctions should not be imposed jointly and severally for failure to obtain an Order Granting Attorney's Motion to be Relieved as Counsel after the Court's tentative ruling was adopted on December 26, 2025, failure to serve Plaintiff August Blass with an Order Granting Attorney's Motion to be Relieved as Counsel on mandatory Judicial Council form MC-053 and file proof of service of that order with the court, and failure to give Plaintiff advance notice of the Case Management Conference set for May 19, 2026.

Counsel Estavillo responded on July 6, 2026. He states that the Proposed Order Granting Attorney's Motion to be Relieved as Counsel, submitted on August 29, 2025, was not signed by the court.

The court has checked the file. The Motion to be relieved as counsel was approved by the unopposed tentative ruling of Judge Douglas which became the order of the court on December 26, 2026. That tentative stated, "The motion to be relieved as counsel is granted and shall be effective upon the filing of the proof of service of the signed order upon the client."

The Court has reviewed the file and agrees with Counsel Estavillo that it does not appear that the court ever signed or filed the order.

Counsel Estavillo referred to the concurrent submission of a new proposed Order Granted Attorney's Motion to be Relieved as Counsel on form MC-0453, which the court did not locate as concurrently filed.

Therefore:

[1] The court **discharges** the OSC without sanction.

[2] The Court **vacates July 23, 2026** which was previously set as a date for further Case Management Conference. The court **sets the date of August 11, 2026 at 8:30 am** for further Case Management Conference in Dept. 32. Parties must file and serve a Case Management Conference Statement 10 days in advance of August 11, 2026.

[3] The court orders Counsel Estavillo to submit a new proposed Order Granted Attorney's Motion to be Relieved as Counsel on form MC-0453, showing the next hearing date to be August 11, 2026 at 8:30 am Dept. 32, at 725 Court Street, Martinez, CA 94553. This new proposed order must be lodged with the court within 5 court days of this hearing.

The court intends to sign that order and order that it be effective upon proof of service of notice of entry of the order.

11. 9:00 AM CASE NUMBER: C25-03207

CASE NAME: ADRIANA ROBLES VS. DAVID ALEXIS

*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: SHAUN J. BAUMAN, ESQ.

FILED BY: ROBLES, ADRIANA

TENTATIVE RULING:

The unopposed motion of **Shaun J. Bauman** to be relieved as counsel for **Plaintiff Adriana Robles** is granted.

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. §§ 284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination upon the consent of both client and attorney, or upon order of the court, upon the application of either client or attorney, after notice from one to the other.

Plaintiff Adriana Robles' counsel has complied with the provisions of this rule and statute providing notice to client and supporting his motion with a declaration articulating

the reasons for withdrawal. After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of Plaintiff's Counsel to be Relieved as Counsel of Record.

This motion is **granted**.

The Court will execute the Proposed Order Granting Attorney **Shaun J. Bauman's** Motion to be Relieved as Counsel (Judicial Council Form MC-053) as submitted with the modification that the next court date is October 14, 2026 for CMC in Dept. 32. The